

Chunni Lal Gupta v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 1 April 2014 · WRIT - C No. 17521 of 2014 · **Writ petition disposed of (impugned bill treated as provisional; objection to be decided; s.127 appeal thereafter)**

HEADNOTE

Under Clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005, after a theft raid the consumer must be served a provisional assessment bill and given 15 days to respond, followed by a final order on hearing. A 'revised bill' issued on the very day of the raid, without the 15-day notice, reply and hearing, cannot stand as a final assessment; it can at best be treated as a provisional bill, against which the consumer may object, and thereafter appeal under Section 127 of the Electricity Act, 2003.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)(iii)

Theft assessment — mandatory 15-day provisional-bill notice before final assessment

QUESTION

Can a final theft assessment ('revised bill') be raised on the same day as the raid, without the 15-day provisional-bill notice and hearing required by Clause 8.1(b)(iii)?

HOLDING

No. Clause 8.1(b)(iii) requires service of a provisional assessment bill with 15 days to reply and a hearing before final assessment. A 'revised bill' issued on the day of the raid, without that procedure, cannot be a final assessment; it is at best provisional, the consumer may file objections to be decided per the Code, and may appeal under Section 127 thereafter.

¶ the Clause 8.1(b)(iii) discussion (unnumbered order)

LIMITING FACTS

A raid and FIR for theft occurred on 06.08.2013, and the 'revised bill' bore the same date (06.08.2013).

PRINCIPLE TAGS

opportunity-before-final-assessment A final theft/assessment bill cannot be raised without the Code's mandatory provisional-bill notice, 15-day reply window and hearing; a same-day 'revised bill' is only provisional. ¶ unnumbered order

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ASSESSMENT ON MERITS

The Court left the merits to the objection/final-assessment process and the statutory appeal under Section 127. ¶ unnumbered order